

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Hutchinson	Team: Team # 1	CCRB Case #: 201016878	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 10/18/2010 6:00 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 4/18/2012		Precinct: 120
Date/Time CV Reported Fri, 12/10/2010 1:45 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/10/2010 1:45 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Antonia Giordano	30487	940193	120 PCT
2. POM Rudy Anzalone	27189	945472	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Antonia Giordano	Abuse: PO Antonia Giordano questioned § 87(2)(b)	A . Unsubstantiated
B . POM Rudy Anzalone	Abuse: PO Rudy Anzalone questioned § 87(2)(b)	B . Unsubstantiated
C . POF Antonia Giordano	Abuse: PO Antonia Giordano searched § 87(2)(b)	C . Unsubstantiated

Case Summary

On December 10, 2010, § 87(2)(b) a resident of § 87(2)(b) in Staten Island, called the CCRB to file the following complaint.

On October 18, 2010, at approximately 6:00 pm, § 87(2)(b) was approached by PO Antonia Giordano and PO Rudy Anzalone of the 120th Precinct, resulting in the following allegations.

- **Allegation A: Abuse of Authority – PO Antonia Giordano questioned** § 87(2)(b)
- **Allegation B: Abuse of Authority – PO Rudy Anzalone questioned** § 87(2)(b)
- **Allegation C: Abuse of Authority – PO Antonia Giordano searched** § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegations A, B, and C be unsubstantiated.**

On January 5, 2011, § 87(2)(b) rejected mediation, § 87(2)(b)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-year-old African-American male, § 87(2)(b)

§ 87(2)(b) with black hair and brown eyes. § 87(2)(b)

CCRB Testimony:

§ 87(2)(b) was interviewed at the CCRB on January 5, 2011 (encl. 5a-5e). § 87(2)(g)

§ 87(2)(b) (encl. 4a). On February 9, 2011, § 87(2)(b) provided a telephone statement with additional information regarding the incident; § 87(2)(g)

§ 87(2)(b) (encl. 7a). On October 18, 2010, at approximately 6:00 pm, § 87(2)(b) was walking on § 87(2)(b) between § 87(2)(b) Staten Island when a marked patrol car containing two officers, identified by the investigation as PO Giordano and PO Anzalone¹, pulled alongside him. § 87(2)(b) did not recall which direction the patrol car had been driving and was unable to describe whether it approached him from in front or from behind. § 87(2)(b) had just been involved in an argument with his girlfriend at her house at § 87(2)(b) and had taken a right onto § 87(2)(b), then a right onto § 87(2)(b). § 87(2)(b) did not recall what street he walked on to get from § 87(2)(b) and was unable to describe his destination. In his telephone statement, § 87(2)(b) specified that his girlfriend's residence is located

¹ § 87(2)(b) described PO Giordano as a Caucasian female officer in her early thirties, standing approximately five feet, three inches tall, weighing approximately one-hundred-twenty pounds, with a slim build, dark brown hair in a ponytail and with bangs, dressed in uniform and sitting in the passenger seat of the police vehicle. § 87(2)(b) obtained PO Giordano's name from her nameplate. § 87(2)(b) described PO Anzalone as a Caucasian male officer in his mid-to-late forties, standing approximately five feet, six inches tall, weighing approximately one-hundred-eighty pounds, with a stocky build, low-cut hair or a shaved head, and dressed in uniform. § 87(2)(b) stated that PO Anzalone was the driver of the police vehicle.

approximately three blocks away from the nearest NYCHA housing development. § 87(2)(b) had crossed from the north side to the south side of § 87(2)(b) in the middle of the block immediately prior to being stopped by the officers. § 87(2)(b) did not interact with any individuals from the time that he exited his girlfriend's residence and the time that he was stopped by the officers. § 87(2)(b) was standing on § 87(2)(b) approximately halfway between its intersections with § 87(2)(b).

The officers exited the patrol car and approached § 87(2)(b). § 87(2)(b) did not recall whether the officers activated the patrol car's turret lights or siren. In his telephone statement, § 87(2)(b) was unable to recall whether he put his hands inside his pockets prior to the officers' approaching him or during the stop, although he recalled that the weather was cold at the time of the incident. PO Giordano asked § 87(2)(b) what he was doing in the area and why he had been walking in the street, and § 87(2)(b) replied that his American citizenship allowed him to walk in the street. PO Giordano explained to § 87(2)(b) that he had been stopped because he was walking in a "drug-infested area." PO Giordano asked § 87(2)(b) for identification and he handed her his driver's license from his wallet. § 87(2)(b) did not recall which pocket his wallet had been stored in. PO Giordano immediately reached into the pockets of § 87(2)(b)'s pants and sweatshirt and removed a pen, mints, a cell phone, and a set of keys. § 87(2)(b) did not recall what PO Giordano did with his identification while she was searching his pockets. At the time of the incident, § 87(2)(b) was wearing blue jeans and a hooded sweatshirt with a zipper and two front pockets. He was holding his wallet in his hand when PO Giordano entered his pockets. § 87(2)(b) argued with PO Giordano regarding his right to walk in the neighborhood while she was searching him and throughout the duration of the interaction. In his CCRB interview, § 87(2)(b) denied that he provided his consent to be searched.

While she was searching § 87(2)(b)'s pockets, PO Giordano explained that she had stopped him because she had seen him exiting "a crack spot" around the corner. § 87(2)(b) later stated that PO Giordano may have alleged that she had seen him coming out of "the projects," although she did not specify the exact location where she had observed him. During the search, three African-American males, who were older than § 87(2)(b), stopped to observe the interaction and PO Giordano told them to "take a hike." After briefly searching § 87(2)(b)'s pockets, PO Giordano took out a summons book and began preparing a summons.

While PO Giordano was preparing the summons, two females § 87(2)(b) recognized from the neighborhood walked by. § 87(2)(b) identified one of the females as "§ 87(2)(b) African-American female residing on § 87(2)(b), and was unable to identify the second female but described her as an African-American female. PO Giordano issued § 87(2)(b) a summons § 87(2)(a) 160.50 before leaving the location. The interaction lasted for approximately fifteen to twenty minutes. § 87(2)(b) stated that he did not file a complaint regarding the incident until another interaction with other police officers prompted him to obtain information regarding the civilian complaint process.

Notice of Claim Statement:

In his Notice of Claim, filed on § 87(2)(b), § 87(2)(g)

(encl. 6a-6c).

NYPD Statement(s):

Subject Officer: PO ANTONIA GIORDANO

PO Giordano is a § 87(2)(b)-year-old Caucasian female officer, § 87(2)(b) with brown hair and brown eyes. She is a five-year veteran of the NYPD. On October 18, 2010, PO Giordano worked from 3:00 pm to 11:35 pm and was assigned to patrol the Richmond Terrace NYCHA housing development. PO Giordano worked with PO Anzalone on the date of the incident; both officers were dressed in uniform and were assigned to marked patrol car 1689, of which PO Anzalone was the driver.

Memo Book:

PO Giordano's memo book noted that, at 6:00 pm, one individual was stopped at § 87(2)(b) in Staten Island. At 6:07 pm, the individual, § 87(2)(b) was issued a summons (encl. 8a-8c).

UF-250:

The stop, question, and frisk report (UF-250) prepared by PO Giordano for the stop of § 87(2)(b) noted that § 87(2)(b) was stopped after officers observed him engaging in actions indicative of a drug transaction. The UF-250 noted that the area has a high incidence of drug transactions, that § 87(2)(b) provided false, inconsistent, or evasive answers to the officers' questions, and that § 87(2)(b) changed directions at the sight of the officers. PO Giordano noted that she frisked § 87(2)(b) because he was wearing inappropriate attire, which could possibly conceal a weapon. The UF-250 noted that a summons § 87(2)(a) 160.50 was issued to § 87(2)(b) and denied that he was searched (encl. 8e-8f).

Summons:

Summons number § 87(2)(b), issued to § 87(2)(b) by PO Giordano § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony:

PO Giordano was interviewed at the CCRB on February 9, 2011 (encl. 8a-8h). On October 18, 2010, at approximately 6:00 pm, PO Giordano and PO Anzalone were conducting a routine patrol and were driving down § 87(2)(b) in Staten Island, between § 87(2)(b) and § 87(2)(b) when they observed two African-American males, one of whom was identified by the investigation as § 87(2)(b) walking together on the sidewalk. The officers continued driving around the vicinity of a NYCHA housing development in the area, identified by the investigation as the Stapleton housing development and, as they circled the block onto § 87(2)(b) PO Giordano observed § 87(2)(b) and the other individual enter a residence that she recognized as one with a high incidence of narcotics-related crime. PO Giordano specified that she observed the individuals complete a full circle of the block comprised of § 87(2)(b) before entering the residence through the front door. PO Giordano did not recall how the individuals gained entry to the building. PO Giordano also specified that numerous individuals had called 311 to report that drugs were being sold in the location and noted that officers working in her command are familiar with the location. PO Giordano did not identify any of the complainants who reported narcotics crime at the location and was unable to specify when the reports were made. PO Giordano was unable to recall the exact address of the residence or identify on which side of § 87(2)(b) it is located. She noted her observation on the UF-250 that she eventually prepared in connection

with the incident by noting that the “area had a high incident of reported offense.” PO Giordano maintained that she and PO Anzalone “happened” to be driving by the residence when § 87(2)(b) and the other individual went inside, and denied that they followed the individuals after first observing them.

§ 87(2)(b) and the other individual exited the front door of the residence after approximately three to four minutes. The officers followed § 87(2)(b) and the individual in their patrol car while they walked down § 87(2)(b) and turned right onto § 87(2)(b). When the individuals saw the patrol car at the corner of § 87(2)(b) and § 87(2)(b) they parted and began walking in opposite directions. PO Giordano indicated that the individuals split up immediately after looking at the patrol car and attributed the divergence of the individuals to the patrol car’s presence. PO Giordano did not recall seeing the individuals make physical contact with each other prior to splitting up. PO Giordano did not recall that either individual was carrying anything and was unable to specify whether the appearance of either individual was in any way different than prior to entering the building. The officers followed § 87(2)(b) as he crossed to the south side of § 87(2)(b) before parking next to him in front of § 87(2)(b). PO Giordano did not know where the other individual went. PO Giordano stated that the officers’ decision to stop § 87(2)(b) rather than the other individual, was arbitrary, since the officers were only able to pursue one of the individuals after they split up.

PO Giordano and PO Anzalone exited their vehicle and approached § 87(2)(b). At the time of the incident, § 87(2)(b) was wearing a long leather jacket, which reached midway down his calves. PO Giordano said to § 87(2)(b) “What are you doing?” and “Where are you from?” but § 87(2)(b) refused to respond to either question by arguing with the officers and informing them of his rights. Later in the interview, PO Giordano stated that § 87(2)(b) eventually told her that he was coming from his friend’s house. PO Giordano did not recall whether § 87(2)(b) identified the friend or provided an address for the house. PO Giordano asked § 87(2)(b) where he was going and he replied, “The ferry.” PO Giordano noted that § 87(2)(b) was stopped as he was walking in the opposite direction of the Staten Island Ferry. PO Giordano stated that she did not recall whether those were the first questions that were asked of § 87(2)(b) or whether her partner addressed him first. PO Giordano or PO Anzalone asked § 87(2)(b) for his identification and he provided it.

When PO Giordano saw that § 87(2)(b)’s identification indicated that he resided in another borough, which she was unable to recall, she asked him what he was doing in Staten Island and asked if he was visiting family. During the line of questioning regarding his presence on Staten Island, § 87(2)(b) grew increasingly irate and raised his voice, yelling that he had been stopped for no reason. § 87(2)(b) repeatedly cursed at the officers and used profanity in explaining that he had done nothing wrong. The loud volume of § 87(2)(b)’s voice, as well as the profanity he was using, caused a crowd of approximately ten people to gather in close proximity to where PO Giordano was conversing with § 87(2)(b).

From officers’ initial approach onward, § 87(2)(b) kept placing his hands in his pockets while interacting with the officers. PO Giordano repeatedly instructed § 87(2)(b) to keep his hands out of his pockets and he repeatedly complied, before re-inserting his hands in the pockets of his jacket on each occasion. § 87(2)(b) said, “You can search my pockets, I have nothing in my pockets.” PO Giordano said, “Okay,” and patted the outside of § 87(2)(b)’s pockets, without making physical contact with the rest of his body. PO Giordano frisked § 87(2)(b) since his repeated refusal to comply with her instructions by persisting in placing his hands in his pockets.

caused her to fear for her safety, since he may have had a weapon in one of his pockets. Later in the interview, PO Giordano acknowledged that she may have frisked other parts of § 87(2)(b)'s body, although she was unable to recall if she did so. PO Giordano felt a hard object in one of the pockets of § 87(2)(b)'s jacket and removed a lighter. PO Giordano was unable to specify what she suspected that the object was, and confirmed that she searched § 87(2)(b) because he had provided his consent to be searched. § 87(2)(b) said, "What are you doing, you can't go in my pockets," and PO Giordano replied, "You just told me I could." § 87(2)(b) said, "No I didn't," and PO Giordano handed him his lighter. PO Giordano prepared a summons § 87(2)(a) 160.50

When presented with the UF-250 she prepared on the date of the incident, PO Giordano stated that she did not note that § 87(2)(b) was searched, since the degree of the search was so minimal. PO Giordano stated that her interpretation of the search category on the UF-250 is that it refers to a thorough search of an individual's person, which she did not perform on § 87(2)(b). PO Giordano described that § 87(2)(b)'s long leather jacket seemed unusual, due to its length, thus comprising the "inappropriate attire- possibly concealing a weapon" category that she noted on the UF-250.

Subject Officer: PO RUDY ANZALONE

PO Anzalone is a § 87(2)(b)-year-old Caucasian male officer, § 87(2)(b), with blond hair and blue eyes. He is a three-year veteran of the NYPD. On October 18, 2010, PO Anzalone worked from 3:00 pm to 11:35 pm and was assigned to patrol an unknown housing development. PO Anzalone worked with PO Giordano on the date of the incident; both officers were dressed in uniform and were assigned to a marked patrol car, of which PO Anzalone was the driver. PO Anzalone did not have any memo book entries relevant to the incident.

CCRB Testimony:

PO Anzalone was interviewed at the CCRB on February 13, 2011 (encl. 9a-9b). § 87(2)(g)

On October 18, 2010, at approximately 6:00 pm, PO Anzalone and PO Giordano were conducting a routine patrol of the housing developments on Staten Island when PO Anzalone observed two African-American males, one of whom was identified by the investigation as § 87(2)(b) exit a "drug-prone" location. Later in the interview, PO Anzalone stated that the individuals may have walked to the front of the residence from the back yard or exited through a side door, rather than exiting from the front door. When the individuals saw the patrol car in front of the building, they walked down the sidewalk in opposite directions. PO Anzalone observed the individual who was not stopped on the date of the incident walk up § 87(2)(b).

PO Anzalone continued driving in the same direction as § 87(2)(b) was walking and passed him while watching him in the rearview mirror. PO Anzalone drove onto § 87(2)(b) and watched in the mirror as § 87(2)(b) turned onto § 87(2)(b) between § 87(2)(b). PO Anzalone parked the patrol car and the officers exited and approached § 87(2)(b). Either PO Anzalone or PO Giordano said, "What are you doing?" and, "Where are you going?" PO Anzalone did not recall whether § 87(2)(b) supplied answers to either question. PO Anzalone asked for § 87(2)(b)'s identification and he provided it. While the officers were questioning § 87(2)(b) he began to yell and curse at the officers, telling them that they had no right to stop him. § 87(2)(b)'s yelling and cursing attracted a small crowd of people, who began to crowd around the

officers and § 87(2)(b) Approximately seven to ten individuals gathered in very close proximity to the officers, within three feet away.

NYPD Document(s)

- The 120th Precinct roll call from tour three on October 18, 2010 confirmed that PO Giordano and PO Anzalone were on-duty at the time of the incident (encl. 10a-10c).
- SPRINT job number M10743 from October 18, 2010 confirmed that one individual was stopped by officers assigned to housing within the confines of the 120th Precinct at 6:06 pm (encl. 12a).
- Warrant check records confirmed that a warrant check was performed on § 87(2)(b) by PO Giordano at 10:48 pm on October 18, 2010 (encl. 11a).

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming assault and battery; false arrest; unlawful imprisonment; malicious prosecution; malicious abuse of process; failure to intervene; gross negligence; negligent screening, hiring, training, retention, and supervision; intentional infliction of emotional distress; conspiracy; violation of privacy; and violation of civil rights, and seeking an unspecified amount in damages (encl. 6a-6c).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- § 87(2)(b) has filed the following CCRB complaints: § 87(2)(b)

Subject Officer(s) CCRB History

- PO Giordano has been a member of the service for five years and there are no substantiated CCRB allegations against her (encl. 1a).
- PO Anzalone has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2a).

Conclusion

Identification of Subject Officer(s)

- PO Giordano and PO Anzalone confirmed that they were the officers who interacted with § 87(2)(b) on the date of the incident. The statements provided to the CCRB by PO Giordano and PO Anzalone were confirmed by police department documentation and the summons issued to § 87(2)(b) which was signed by PO Giordano. § 87(2)(b) also identified PO Giordano by name.

Allegations Not Pled:

- § 87(2)(g) [REDACTED]

Investigative Findings and Recommendations

- **Allegation A: Abuse of Authority – PO Antonia Giordano questioned** § 87(2)(b)
- **Allegation B: Abuse of Authority – PO Rudy Anzalone questioned** § 87(2)(b)
- **Allegation C: Abuse of Authority – PO Antonia Giordano searched** § 87(2)(b)

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED] it is therefore recommended that **Allegations A and B be unsubstantiated.**

[illegible]

it is therefore recommended that

Team: 1

Reviewer: _____
 Title/Signature Print Date